Policy: 1605
Section: 1000 – board of Directors

(DRAFT 10-31-23)

PROPOSED
NEW POLICY

Action Item

Rationale: This new policy establishes operating commitments and protocols for the Board of Directors to serve as a code of conduct and ethics, promote best collaborative practices, and model effective leadership practices. The operating commitments and protocols will be reviewed, discussed, and signed annually by the board.

Board of Directors Operating Commitments and Protocols

I. Operating Commitments

A. We, the members of the Board of Directors of Vancouver Public Schools, are committed to serving the students and community of Vancouver Public Schools. We strive to provide the highest quality public education and hold a strong conviction that all students, regardless of circumstances, can learn and achieve within an equitable public school system. The board recognizes that systemic change and a focus on equity are necessary to achieve this vision, create inclusive instructional environments, deliver culturally relevant and differentiated instruction, and foster a culture of belonging for all students.

B. In furtherance of our commitment to providing the highest quality education for all our students, we have established these operating commitments and protocols to serve as a code of conduct and ethics to help govern our actions as directors and in our working relationship with the superintendent.

C. We agree to always show respect for each other, for all members of Vancouver Public Schools, and for all other community members. We hold a fundamental belief in the goodwill of all members of the Vancouver Public Schools community and honor the dignity of each individual in our school community through openness, listening, patience, and empathy. We especially value the hard work of the staff and endeavor to show appreciation in our actions as a collective board and as individual directors.

D. We are members of a governance team of six (five directors and the superintendent) dedicated to working collaboratively for the best interest of our students, families, staff, and community.

E. We are committed to modelling the leadership expected at every level of the district. We will follow best collaborative practice in our deliberations, guided by the belief that better decisions will result from our individual and collective commitment to learn and understand varying perspectives as we work to build consensus.

F. We believe that successful organizations are the result of strong and effective leadership. In order for members of our governance team to be effective leaders, we commit to know, understand, and abide by the respective roles of the board and superintendent.

II. Protocols

A. The board has developed operating protocols in the following areas:

1. Roles of the board and superintendent;
2. Board meetings;
3. Communications;
4. Board conduct;
5. Board authority;
6. Professional development; and
7. Board role in negotiations.

B. The protocols are incorporated in this policy as attachments one through seven. These protocols are complementary to, and do not replace, the board's governance policies and procedures found in the district's policy manual, section 1000, board of directors.

To demonstrate the board's commitment to, and affirmation of, these protocols, the board will review, discuss, and sign this policy and the accompanying protocols annually at a Board retreat and whenever a new member of the board is administered the oath of office.

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1. Roles of the Board and Superintendent

The primary roles of the board and superintendent are to:

School Board – Governs (Guides/Directs)	Superintendent – Manages (Administers/Operates)
Decides what	Decides how
Requests information	Seeks and provides information
Considers issues	Provides recommendations
Creates, reviews, and adopts policy	Recommends and implements policy; approves and reviews plans
Monitors progress	Implements plans and reports progress
Supervises and evaluates the superintendent	Contracts with personnel
Approves and reviews the budget	Formulates the budget
Represents the public's interests	Acts in the public's interest

To promote effective governance and administration of the district, the board and superintendent will not:

School Board	Superintendent
Abdicate board responsibility	Assume board responsibilities
Direct any staff other than the superintendent	Direct the board
Carry out policies or micro-manage implementation of policies	Make policies
Press a narrow personal agenda	Press a narrow personal agenda
Take action as individual directors (e.g., make promises) that could appear binding upon the board and/or the district	Discourage open discussion by and feedback from the board, employees, and community members
Create surprises that reasonably could be avoided through advance planning and communication	Create surprises that reasonably could be avoided through advance planning and communication

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2. Board Meetings

Regular Board Meetings. Board meetings provide the forum for making decisions.

Regarding board meetings, we will:

- Review agenda items prior to board meetings.
- Request any additional information from the board president and superintendent in advance of the board meeting, when possible.
- Ask the board president and superintendent to place an item on the agenda instead of bringing it up unexpectedly at the meeting.
- Avoid creating surprises for the board or superintendent that reasonably could be avoided through advance planning and communication.
- Invest time to discuss and study systemic issues that impact equitable student achievement.
- Strive to hold efficient and succinct meetings, while also allowing adequate time and consideration of underrepresented voices and issues impacting equity.
- Expect and cooperate with the board president to be conscientious of time and observe the board's protocol.
- Refer additional facts and information needed by the board to superintendent for follow-up.

Executive Session Board Meetings. Executive sessions will be held when specific needs arise.

Regarding executive sessions, we will:

- Hold executive sessions as needed and permitted by state law. Permissible topics for executive session include:
  - Discussing the acquisition or sale of real estate;
  - Reviewing the performance of a public employee and evaluating complaints against a public employee or school director;
  - Reviewing qualifications of a candidate for appointment to elective office such as a school director; and
  - Discussing with legal counsel matters relating to enforcement actions, litigation, or potential litigation.
- Be sensitive to the legal ramifications of executive session meetings and comments.
- Respect the confidentiality of all privileged information (e.g., legal privilege) discussed in executive session.
- Discuss permissible topics in executive session, but take final actions in public, as required by the Open Public Meetings Act.
- Discuss all topics included on the agenda and avoid discussing topics related to district business that are not on the agenda.

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3. Communications

Communications Between the Board and District Staff

We will adhere to the following communications procedures:

- **Board communications to cabinet:** Directors should communicate principally with the superintendent for all requests for information or questions to cabinet members regarding the business of the district. However, directors may communicate directly with cabinet members, if needed, provided the superintendent and board president are included on the communication. This is intended to support efficiencies in responding to director requests.

- **Board communications to staff:** Director requests for information or questions to other staff members regarding the business of the district will be directed to the superintendent. The board president will be included on the communication. Directors will be conscientious of the amount of time required for a meaningful response and potential public implications, actual or perceived, of the request. The superintendent will facilitate a timely response to the request. All official communications, policies, and directives of staff interest and concern will be communicated to staff through the superintendent. The superintendent will employ all such media as are appropriate to keep staff fully informed of the board's priorities, concerns, and actions. All reports to the board or individual directors from principals, teachers, and other staff members will be submitted through the superintendent.

- **Director visits to schools:** While acting in an official capacity (e.g., not acting as a parent of a VPS student), any director interested in visiting schools will give notice to the superintendent and board president. Visits will be coordinated through the superintendent's office with advance notice to the area executive director of teaching and learning and building staff, as appropriate. Such visits will be regarded as expressions of interest in school affairs and not as "inspections" or visits for supervisory or administrative purposes. Visits will be carried on only under board authorization.

- **Social interaction:** District employees and directors share a keen interest in the schools and in public education. When they meet at social affairs and other functions, informal discussion on such matters as educational trends, issues, and innovations can be anticipated and are permissible. Discussions of personnel or staff grievances are not appropriate.

Responding to Complaints and Concerns

Regarding complaints and concerns received by the board, we will:

- Immediately forward all complaints or concerns from community members or staff members to the board president and superintendent. The board president will initially respond on behalf of the board to acknowledge receiving the communication. The board president and superintendent will determine the process for ensuring a substantive response is provided, as appropriate to the circumstances. Any individual director who wishes to respond to the complaint or concern shall consult with the board president and superintendent.

- Expect the superintendent's weekly briefing to directors to summarize the response provided to the community member or staff member.

- Personnel complaints and criticisms received by a director will promptly be directed to the board president and superintendent. The board president will initially respond on behalf of the board to acknowledge receiving the communication. The superintendent will facilitate a timely response to the complaint.

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4. Board Conduct

Director Conduct
We will adhere to the following standards of conduct: • Represent and make all decisions based on consideration of the needs and best interests of all students and the district as a whole. Not yield to individuals or special interest groups whose position on an issue does not represent the best interests of all students and the district as a whole. The board's commitment is to student learning. • Base decisions on the facts available to, and considered by, the whole board. Endeavor to hear the perspectives of, and listen objectively to, all directors. Encourage respectful debate and differing points of view. • Conduct discussions with care and respect. • Lead by example. Use words and actions that create a positive impression on an individual, the board, and the district. • Follow all district policies and procedures. • Not abuse our official position. • Not use district facilities, resources, or position for the purpose of advancing the interest of ourselves or others, in conflict with district policy and ethical rules. • Make every attempt to attend all board functions, including committee meetings. • Serve on committees in the role designated by the board and as defined by the committee. • Support all final board decisions, regardless of how we individually voted. • Take no private actions that will compromise the board, administration, or district staff.

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5. Board Authority

The Board's Authority
We recognize the following authority and limitations on authority of the board: • That only the board as a whole has authority. Individual directors do not have authority. • That the board as a whole gives direction to the superintendent. The individual directors do not give direction to the superintendent. • That an individual director will not take unilateral action. • That it is the responsibility of the board to exercise oversight through policy making, planning, advocacy, and public relations rather than being involved in the management of school operations. • That the board delegates the management of the schools to the superintendent. • That it is the responsibility of the board to set clear goals for the superintendent. • That the board president is the spokesperson for the board.
The Board and Superintendent Relationship
To promote an effective working relationship between the board and the superintendent, we will: • Recognize the superintendent as the chief executive officer and expect recommendations, proposals, and suggestions from the superintendent on most matters before the board. • Expect the board president or designee, vice president, and superintendent to confer prior to each board meeting to discuss the agenda and procedures for the meeting. Individual directors wishing to suggest an agenda topic will contact the board president and superintendent. • Expect the board president to meet with the superintendent and keep all directors informed of board matters and pertinent information. • Expect that if the superintendent needs clarification or direction between board meetings, the superintendent will contact the board president or vice-president, if the president is unavailable. • At the monthly director's meetings, meet individually or in pairs with the superintendent to share concerns, ask questions, or to bring forth future agenda items for the board's consideration.

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6. Professional Development

The Board's Commitment to Continuing Professional Growth and Development
As an expression of our commitment to continuing professional growth and development, we will: • Conduct a "self-evaluation" of the board every year. • Model life-long learning. • Participate in opportunities that provide continuing professional growth, including open government training, cultural competency training, and equity, diversity, and inclusion training. • Encourage directors to take advantage of opportunities to participate at appropriate board conferences, workshops, and conventions. • Encourage directors to report on workshop or conference learning outcomes and disseminate information to other members of the governance team.

7. Board Role in Negotiations

The Board's Role in Negotiations
In furtherance of an effective and lawful negotiation process, we will: • Define the philosophical and financial parameters for the district's negotiating team. • Entrust the district's negotiating team with engaging in good faith negotiations and attempting to achieve the directed philosophical and financial parameters to the maximum benefit of all students and the district as a whole. • If staff members attempt to communicate with the board or individual directors about negotiations, respectfully remind staff that any questions or issues need to go through the defined negotiation process to be addressed by the staff's and district's respective negotiating teams. • Adopt and stand behind the final contracts.

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III. Process for Addressing Director Violations of Board Policy, Commitments, and Protocols

The board, individually and collectively, commits to full compliance with the board's policies, commitments, and protocols. In the event of an inadvertent or isolated action that is inconsistent with these policies, commitments, and protocols, the board president will discretely and respectfully resolve the concern with the offending director. In the event of willful or continuing violation of these policies, commitments, or protocols, the board may seek remedy by using the following process:

A. Conversation, in a private setting, between the offending director and the board president or, if the president is unavailable, another director selected by the president.

B. Discussion in an executive session between the offending director and the board, if permitted by law.

C. If appropriate, removal of the offending director from a committee or other board-designated responsibility.

D. Public censure of the offending director.

E. In instances of non-attendance, declaration of vacancy of the board position in accordance with the law.

This policy and the incorporated protocols were reviewed and affirmed by the Board of Directors of Vancouver School District No. 37, in Clark County, Washington, at a meeting thereof held this _____ day of [month], 20____.

Attest:

Vancouver School District No. 37
Clark County, Washington

_____
Secretary, Board of Directors

_____
President, Board of Directors

_____
Vice President, Board of Directors

_____
Director, Board of Directors

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Director, Board of Directors

_____
Director, Board of Directors

Adopted:

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